



CHAPTER 49.

An Act to amend the Form of Warrant of Execution on A.D. 1916.
Extracts of Decrees of the Court of Session, and to
provide for the means of making and the authentication
of such Extracts. [31st October 1916.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. In every extract of a decree pronounced or to be pronounced by the Court of Session on which execution may competently proceed, the principal extractor or assistant extractor shall insert a warrant for execution in the form or as nearly as may be in the form of the schedule to this Act annexed, and it shall be lawful by virtue of such warrant to arrest the readiest goods, debts, and sums of money of the debtor or obligant mentioned in such extract in payment and satisfaction of the sum or sums of money or obligation or obligations therein specified, as also to charge the debtor or obligant therein mentioned to pay the sum or sums of money or to perform the obligation or obligations therein specified within the appropriate days of charge under the pain of poinding and of imprisonment so far as competent, the terms of payment or implement being first come and bygone ; and if he fail to obey the said charge, then so far as competent to apprise, poind and distrain all his readiest goods, gear and other effects in payment and satisfaction of the said sum or sums or obligation or obligations, and if necessary for effecting the said poinding to open shut and lockfast places.

Form of warrant for execution in extracts of Court of Session decrees.

2. Extracts of decrees of the Court of Session may be partly or wholly written, type-written, printed, engraved or lithographed, and every such extract shall be signed on the last page thereof by the principal or assistant extractor, and no

Means of making and authentication of extracts.

A.D. 1916. — further signature on any other page thereof shall be necessary, but each sheet of every such extract shall be impressed with an office seal or stamp to be kept in the office of the extractor: Provided that it shall be necessary and sufficient in the case of any marginal addition occurring in any extract that the same shall be authenticated by the signature of the principal or assistant extractor certifying such extract.

Short title and
extent.

3. This Act may be cited as the Court of Session (Extracts) Act, 1916, and shall apply to Scotland only.

SCHEDULE.

And the said Lords grant warrant for all lawful execution hereon.

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.